

General Knowledge

Indian Polity

STUDY NOTES

Vice President

PREAMBLE
PEOPLE OF INDIA, in



VICE PRESIDENT



About

- The Vice President is the **second-highest constitutional office** in India and ranks next to the President in the official order of precedence.
- The office of the Vice President is outlined in **Articles 63 to 71 in Part V** of the Indian Constitution.

Article	Content
Article 63	Establishes the office of the Vice-President of India.
Article 64	The Vice-President to be Ex-Officio Chairman of the Council of States (Rajya Sabha).
Article 65	Lays down provisions for the Vice-President to act as the President in case of a vacancy or inability of the President.
Article 66	Specifies the manner of election of the Vice-President (elected by the electoral college, comprising members of both Houses of Parliament).
Article 67	Describes the term of office of the Vice-President (five years), including provisions for resignation and removal from office.
Article 68	States that elections to fill the vacancy of Vice-President should be held before the term expires, or as soon as possible if the office becomes vacant.

Article 69	The Oath or Affirmation for the Vice-President, administered by the President, or a person appointed by him.
Article 70	Provides the Parliament with the power to make provisions for the discharge of functions of the President in case both the offices of President and Vice-President are vacant.
Article 71	Deals with all matters related to the election of the President or Vice-President and disputes regarding their elections, to be inquired into by the Supreme Court, whose decision is final.

NOTE

The office of the Vice President of India is modelled on the lines of the American Vice-President.

Qualifications

A person to be eligible for election as the Vice President of India should possess the following qualifications.

- He/she should be a citizen of India.
- He/she should have completed **35 years of age**.
- He/she should be qualified for election as a member of the **Rajya Sabha**.
- He/she should not hold any office of profit under the Union Government or any State Government or any Local Authority or any other Public Authority.

Further, a vice-presidential candidate has to fulfill the following conditions for his/her election as the Vice President of India:

- His/her nomination for election to the office of President must be subscribed by at least **20 electors as proposers and 20 electors as seconders**.
- He/she has to make a security **deposit of ₹15,000 in the Reserve Bank of India**.

Election of Vice President of India

- The Vice President of India is elected **not directly by the people** of India.

Electoral College of Vice President of India

VOTES  The members (both elected as well as nominated) of both the Houses of Parliament.	DOES NOT VOTE  The members of the Legislative Assemblies of States.
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How is it different from the electoral college of the President of India?

Vice President of India	President of India
• The Electoral College of Vice-President consists of both Elected and Nominated Members of both the Houses of Parliament. • It does not include the Members of the State Legislative Assemblies.	• The Electoral College of the President consists of only Elected Members of both the Houses of Parliament. • It includes the Elected Members of the State Legislative Assemblies and Elected Members of Legislative Assemblies of the Union Territories of Delhi and Puducherry.

- The Vice-President of India is elected through a **Proportional Representation system** using the Single Transferable Vote method, and the voting process is conducted by **secret ballot**.
- This method of election mirrors that of the President of India.
- **In case of disputes or doubts regarding the Vice-President's election, the Supreme Court holds the authority to investigate and resolve the matter, and its decision is final and binding.**

- The election cannot be contested on the basis that there were vacancies in the Electoral College at the time of voting.
- Moreover, if the Supreme Court invalidates the Vice-President's election, any actions taken by the Vice-President before such a declaration remain legally valid and effective.

Term and Re-election

- The Vice President's term lasts for **five** years but may continue in office until a successor is sworn in.
- The Vice President can be **re-elected for an unlimited number of terms**.

Oath of Office

- The Vice President takes an oath administered by the **President** (or a designated individual).
- In the oath, the Vice President pledges to uphold the Constitution of India and perform the duties of the office faithfully.

Conditions of Office

- The Vice President **cannot be a member** of either Parliament or any State Legislature.
- If elected as Vice President, the individual must vacate their seat in such bodies.
- The Vice President **must not hold any office of profit**.

Vacancy

- A vacancy in the Vice President's office can arise due to:
 - Expiry of the term,
 - Resignation,
 - Removal,
 - Death, or
 - Disqualification or election being declared void.
- If the office becomes vacant, an election must be held as soon as possible, and the **newly elected Vice President serves for a full five-year term**.

Powers and Functions

The Vice President holds two primary roles:

- Ex-officio Chairman of the Rajya Sabha: Similar to the Speaker of Lok Sabha, the Vice President **presides over the upper house of Parliament.**

NOTE

In terms of the role as Chairman of the Rajya Sabha, the Vice President of India is similar to the Vice President of the United States, who also serves as the President of the Senate, which is the upper house of the American legislature. Both function as presiding officers over their respective legislative bodies.

Acting as President:

- In cases where the office of the President becomes vacant (due to resignation, impeachment, death, or otherwise), the Vice President steps in as acting President for a **maximum period of six months.**
- During this period, a new President must be elected.

NOTE

Note: While acting as President or discharging the functions of President, the Vice-President does not perform the duties of the office of the Chairman of Rajya Sabha. During this period, those duties are performed by the Deputy Chairman of the Rajya Sabha.

Salaries and Allowances

- As Chairman of the Rajya Sabha, the Vice President receives a salary and various allowances (daily allowances, housing, medical, travel, etc.).
- **While acting as President, the Vice President receives the salary and benefits of the President and not those of the Rajya Sabha Chairman.**
- This structure ensures that the Vice President plays a key dual role in Indian governance, bridging both legislative and executive responsibilities.

Resignation

- The Vice President may resign at any time by submitting a letter to the **President** of India.

Removal

- Unlike the President, the removal of the Vice President **does not require a formal impeachment**.
- A resolution for removal can **only be introduced in the Rajya Sabha**, with **14 days'** advance notice, and must be passed by an **effective majority** (a majority of the then-members of **Rajya Sabha**) and agreed to by **Lok Sabha** by a **simple majority**.